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sider examples in the Courts of Appeals⁷ as well as our own, two categories emerge. In the first are claims that systemic official action frustrates a plaintiff or plaintiff class in preparing and filing suits at the present time. Thus, in the prison-litigation cases, the relief sought may be a law library for a prisoner's use in preparing a case, *Bounds v. Smith*, 430 U. S. 817, 828 (1977); *Lewis v. Casey*, 518 U. S. 343, 346–348 (1996), or a reader for an illiterate prisoner, *id.*, at 347–348, or simply a lawyer, *ibid.* In denial-of-access cases challenging filing fees that poor plaintiffs cannot afford to pay, the object is an order requiring waiver of a fee to open the courthouse door for desired litigation, such as direct appeals or federal habeas petitions in criminal cases,⁸ or civil suits asserting family-law rights, *e. g.*, *Boddie v. Connecticut*, 401 U. S. 371, 372 (1971) (divorce filing fee); *M. L. B. v. S. L. J.*, 519 U. S. 102, 106–107 (1996) (record fee in parental-rights termination action). In cases of this sort, the essence of the access claim is that official action is presently denying an opportunity to litigate for a class of potential plaintiffs. The opportunity has not been lost for all time, however, but only in the short term; the object of the denial-of-access suit, and the justification for recognizing that claim, is to place the plaintiff in a position to pursue a separate claim for relief once the frustrating condition has been removed.

The second category covers claims not in aid of a class of suits yet to be litigated, but of specific cases that cannot now

⁷See, *e. g.*, *Delew v. Wagner*, 143 F. 3d 1219, 1222–1223 (CA9 1998); *Swekel v. River Rouge*, 119 F. 3d 1259, 1263–1264 (CA6 1997); *Vasquez v. Hernandez*, 60 F. 3d 325, 329 (CA7 1995); *Foster v. Lake Jackson*, 28 F. 3d 425, 429–431 (CA5 1994); *Williams v. Boston*, 784 F. 2d 430, 435 (CA1 1986); *Bell v. Milwaukee*, 746 F. 2d 1205, 1260–1266 (CA7 1984); *Ryland v. Shapiro*, 708 F. 2d 967, 974–975 (CA5 1983).

⁸*E. g.*, *Smith v. Bennett*, 365 U. S. 708, 713–714 (1961) (filing fee for habeas petitions); *Burns v. Ohio*, 360 U. S. 252, 255–258 (1959) (fee for direct appeal in a criminal case); *Mayer v. Chicago*, 404 U. S. 189, 195–196 (1971) (same, as to petty crime); *Griffin v. Illinois*, 351 U. S. 12, 16–20 (1956) (transcript fee for appellate review in a criminal case).

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be tried (or tried with all material evidence), no matter what official action may be in the future.⁹ The official acts claimed to have denied access may allegedly have caused the loss or inadequate settlement of a meritorious case, *e. g.*, *Foster v. Lake Jackson*, 28 F. 3d 425, 429 (CA5 1994); *Bell v. Milwaukee*, 746 F. 2d 1205, 1261 (CA7 1984) (“[T]he cover-up and resistance of the investigating police officers rendered hollow [the plaintiff’s] right to seek redress”), the loss of an opportunity to sue, *e. g.*, *Swekel v. River Rouge*, 119 F. 3d 1259, 1261 (CA6 1997) (police coverup extended throughout “time to file suit . . . under . . . statute of limitations”), or the loss of an opportunity to seek some particular order of relief, as Harbury alleges here. These cases do not look forward to a class of future litigation, but backward to a time when specific litigation ended poorly,¹⁰ or could not have commenced, or could have produced a remedy subsequently unobtainable.¹¹ The ultimate object of these sorts of access claims, then, is not the judgment in a further lawsuit, but simply the judgment in the access claim itself, in providing relief obtainable in no other suit in the future.

While the circumstances thus vary, the ultimate justification for recognizing each kind of claim is the same. Whether an access claim turns on a litigating opportunity yet to be gained or an opportunity already lost, the very point of recognizing any access claim is to provide some ef-

⁹ All such cases have been decided in the Courts of Appeals, see n. 7, *supra*; we assume, without deciding, the correctness of the decisions.

¹⁰ Some Courts of Appeals have held that an actual attempt to sue is a prerequisite to any such claim. See *Delew, supra*, at 1222–1223; *Swekel, supra*, at 1263–1264. See also App. to Pet. for Cert. 46a (District Court adopting this requirement). But cf. *Swekel, supra*, at 1264, n. 2 (“We recognize that in some instances it would be completely futile for a plaintiff to attempt to access the state court system. The Plaintiff, however, has not presented evidence that this is such a case”).

¹¹ Bifurcation into forward-looking and backward-looking access claims is a simplification, and not the only possible categorization, but it helps to focus the issues here.

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fective vindication for a separate and distinct right to seek judicial relief for some wrong. However unsettled the basis of the constitutional right of access to courts,¹² our cases rest on the recognition that the right is ancillary to the underlying claim, without which a plaintiff cannot have suffered injury by being shut out of court. We indicated as much in our most recent case on denial of access, *Lewis v. Casey*, *supra*, where we noted that even in forward-looking prisoner class actions to remove roadblocks to future litigation, the named plaintiff must identify a “nonfrivolous,” “arguable” underlying claim, *id.*, at 353, and n. 3, and we have been given no reason to treat backward-looking access claims any differently in this respect. It follows that the underlying cause of action, whether anticipated or lost, is an element that must be described in the complaint, just as much as allegations must describe the official acts frustrating the litigation. It follows, too, that when the access claim (like this one) looks backward, the complaint must identify a remedy that may be awarded as recompense but not otherwise available in some suit that may yet be brought. There is, after all, no point in spending time and money to establish the facts constituting denial of access when a plaintiff would end up just as well off after litigating a simpler case without the denial-of-access element.

¹²Decisions of this Court have grounded the right of access to courts in the Article IV Privileges and Immunities Clause, *Chambers v. Baltimore & Ohio R. Co.*, 207 U. S. 142, 148 (1907); *Blake v. McClung*, 172 U. S. 239, 249 (1898); *Slaughter-House Cases*, 16 Wall. 36, 79 (1873), the First Amendment Petition Clause, *Bill Johnson’s Restaurants, Inc. v. NLRB*, 461 U. S. 731, 741 (1983); *California Motor Transport Co. v. Trucking Unlimited*, 404 U. S. 508, 513 (1972), the Fifth Amendment Due Process Clause, *Murray v. Giarratano*, 492 U. S. 1, 11, n. 6 (1989) (plurality opinion); *Walters v. National Assn. of Radiation Survivors*, 473 U. S. 305, 335 (1985), and the Fourteenth Amendment Equal Protection, *Pennsylvania v. Finley*, 481 U. S. 551, 557 (1987), and Due Process Clauses, *Wolff v. McDonnell*, 418 U. S. 539, 576 (1974); *Boddie v. Connecticut*, 401 U. S. 371, 380–381 (1971).